

SUPREME COURT OF THE STATE NEW YORK
COUNTY OF KINGS

Index No.

X-----X
JOHN FREDERICK

Plaintiffs,

-against-

SUMMONS

CITY OF NEW YORK, NYPD DETECTIVE
SANDRA RICHARD and POLICE OFFICERS
JOHN DOE 1-10

Defendants.

X-----X

Venue based on Plaintiffs residence:
(Brooklyn, N.Y.)

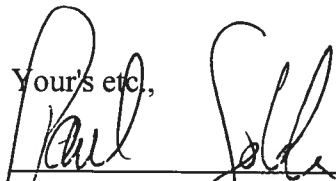
TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED and required to appear in the Supreme Court of the State of New York, County of Kings, at the Office of the Clerk of the said court located at 360 Adams Street, Brooklyn, N.Y. 11801 - by serving an answer to the Verified Complaint and to serve a copy of your Verified Answer on the Clerk; within twenty (20) days after service of this summons and Verified Complaint, exclusive of the day of service (or within thirty (30) days after service is complete if this Summons and Verified Complaint is not personally delivered to you within the State of New York); and in case of your failure to answer, judgment will be taken against you by default for the relief demanded in the Verified Complaint.

Dated: New York, New York
April 7, 2015

Defendant's Address:
City of New York (Corp Counsel, Z. Carter Esq.)
100 Church Street, New York, N.Y. 10007

Your's etc.,


PAUL J. SOLDA, ESQ.

(Attorney for Plaintiff)
Empire State Building,
350 Fifth Avenue, Ste. 4400
New York, New York 10118
(212) 967-3393

SUPREME COURT OF THE STATE NEW YORK
COUNTY OF KINGS

Index No.

X-----X
JOHN FREDERICK

Plaintiffs,

-against-

VERIFIED COMPLAINT

CITY OF NEW YORK, NYPD DETECTIVE
SANDRA RICHARD and POLICE OFFICERS
JOHN DOE #1-10

Defendants.

X-----X

Plaintiffs JOHN FREDERICK by and through their attorney, PAUL J. SOLDA, ESQ., an attorney duly admitted to practice in the State of New York, alleges the following:

PARTIES

1. Plaintiff JOHN FREDERICK is a New York resident and a citizen of the United States, residing at 1400 Bergen St., Brooklyn, NY.
2. Defendant CITY OF NEW YORK is a government and municipal entity existing within the boundaries of the five boroughs of the City of New York, State of New York.
3. Upon information and belief, and at all times hereinafter mentioned, Defendant DET. SANDRA RICHARD is a duly employed law enforcement officer of the NYPD.
4. Venue is based upon Plaintiff's residence.
5. Pursuant to N.Y.S. Gen. Muncpl. Law §50(e), a Notice of Claim was served upon the appropriate bodies for the City of New York on July 5, 2014 - a time period within 90 days after the claim herein arose.
6. Said Notice of Claim set forth the nature of the claim, including the time/place and the manner in which the said claim arose and the damages/injuries claimed to have been sustained so far as then practicable.

7. That at least thirty (30) days have elapsed since the service of said notice, and *payment* thereof has been neglected and that this action is commenced within one year and 90 days after such accrual of the claim.

FACTS OF THE CASE

8. That on March 13, 2013 at approximately 10:00 A.M., “plain clothed” officers entered the business premises known as Church Avenue Pawn Shop located at 2240 Church Ave., Brooklyn, NY.

9. That the supervisor of those officers, DET. SANDRA RICHARD (“RICHARD”), was looking to seize, upon information and belief, certain jewelry being legally held as collateral by Church Avenue Pawn Shop (“Church Pawn”).

10. That plaintiff was a duly employed manager of Church Pawn.

11. That RICHARD, claiming to be a police officer, demanded plaintiff to turnover such jewelry possessed by Church Avenue.

12. That plaintiff requested to see identification to which defendants refused.

13. That plaintiff, assuming defendants were legitimate police officers, inquired whether or not defendants had a search warrant

14. That RICHARD stated they did not have a warrant nor did they need one.

15. Nonetheless, plaintiff stated he had no authority to release property of the business and requested that defendants first obtain a search warrant prior to being able to search the premises or seize any collateral.

16. Without any further action, defendants arrested plaintiff.

17. That as a consequence of the arrest, claimant was incarcerated for approximately 2 days.

18. That claimant was assigned arrest number K13623263 and NYSID number 04291654K.

19. That after the subject arrest, RICHARD undertook to do what plaintiff had initially directed - obtain a valid search warrant to search the premises of Church Pawn.

20. Plaintiff's incarceration compelled him to appear at the criminal courts pursuant to misdemeanor charges on as many as six separate occasions thereafter.

21. That on April 10, 2014 all criminal charges brought against plaintiff were entirely dismissed on the merits - by Hon. Laura Johnson of the Kings Criminal Court.

AS AND FOR A FIRST CAUSE OF ACTION FOR DEPRIVATION OF CIVIL RIGHTS

22. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered "1" through "21" inclusive, with the same force and effect as if more fully set forth at length herein and states that the Defendant Police Officers were at all times relevant, duly appointed officers of the NYPD.

23. At all times mentioned, said police officer was acting under color of law, to wit: statutes, ordinances, regulations, policies and customs and usage of the State of New York and City of New York.

24. Plaintiff is at all times relevant herein, a citizen of the United States and a resident of County of Kings, State of New York - and brings this action pursuant to 42 USC Section 1983 and 42 USC Section 1988.

25. The defendant, CITY OF NEW YORK ("CITY") is a municipality duly incorporated under the laws of the State of New York and NYC Charter.

26. On the dates referenced hereinabove, the defendants did, as armed police officers, while attempting to effectuate seizure of evidence concerning plaintiffs place of employment (Church Pawn) - defendants did search, seize, assault and commit battery without any probable

cause.

27. They did physically, seize plaintiffs during the arrest process in an unlawful an excessive manner – without just cause. As a consequence, Plaintiff was falsely arrested, unlawfully imprisoned and maliciously prosecuted without defendants possessing probable cause to do so.

28. The actions of the defendants resulted in the plaintiff being deprived of the following rights under the US Constitution:

- a. Freedom from assault;
- b. Freedom from battery;
- c. Freedom from illegal search and seizure;
- d. Freedom from false arrest;
- e. Freedom from malicious prosecution;
- f. Freedom from use of excessive force;
- g. Freedom from unlawful imprisonment.

29. Defendants subjected plaintiff to such deprivations of liberty, either in a malicious or reckless disregard of plaintiff's rights and/or with deliberate indifference to those rights conferred by the Fourth and Fourteenth Amendments to the U.S. Constitution - as well as the New York State Constitution, Article 1 §§11, 12.

30. The direct and proximate result of Defendants actions resulted in Plaintiff suffering severe and permanent injuries of a psychological nature. Plaintiff was further forced to endure emotional distress, humiliation and anxiety - all to his detriment.

31. In accordance with 42 USC Section 1988, Plaintiff has been damaged in the minimum sum of \$5,000,000.00 and a reasonable award of attorneys fees should issue thereon.

AS AND FOR A SECOND CAUSE OF ACTION
(Unlawful Arrest)

32. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered "1" through "31" inclusive, with the same force and effect as if more fully set forth at

length herein and states that during the course of the ensuing confrontation and police action, Plaintiff was arrested without any justification or probable cause.

33. That as a consequence of the arrests, plaintiff was incarcerated for approximately 2 days.

34. That it was the intention of Defendants to confine Plaintiffs; that Plaintiffs were conscious of the confinement and that Plaintiffs did not consent to the confinement as the confinement was not privileged.

35. That Plaintiffs suffered from unlawful physical touch, embarrassment, ridicule, emotional distress and damage to their reputation - arising out of said illegal confinement and false imprisonment.

36. Acting under color of law and with motive and intent to exert duress, intimidate and cause fear, said Defendants deprived Plaintiffs of their rights by virtue of such arrest and the injuries resulting were the direct and proximate result of Defendants actions.

37. That the "overnight incarceration" was egregious, unnecessary and retaliatory and deliberately staged to willfully strike harm and effect in the Plaintiff.

38. Such actions were reckless and demonstrated a callous indifference to the legally protected rights of others.

39. Accordingly, compensatory and punitive damages should issue in the minimal sum of \$5,000,000.00.

AS AND FOR A THIRD CAUSE OF ACTION
(Assault/Battery)

40. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered "1" through "39" inclusive, with the same force and effect as if more fully set forth at length herein and states that Defendants during the course of making the subject arrest -

unlawfully engaged in bodily contact with Plaintiff.

41. That it was the intention of Defendants to not just to confine Plaintiffs under arrest but to place them in apprehension and fear of injury by Defendants unlawful physical actions and contact.

42. That Defendants did strike fear into the Plaintiff by their actions and that such results constituted an assault and battery on Plaintiff.

43. At no time did the plaintiff consent the unlawful actions by the defendants.

44. Such actions demonstrated a callous indifference to the legally protected rights of others.

45. Accordingly, compensatory and punitive damages should issue in the minimal sum of \$5,000,000.00.

AS AND FOR A FOURTH CAUSE OF ACTION
(Malicious prosecution)

46. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered "1" through "45" inclusive, with the same force and effect as if more fully set forth at length herein and states that Defendants played an active role in commencing and staging the underlying prosecution against the Plaintiffs, in part, by issuing certain criminal charges despite them having no merit.

47. That at the subsequent criminal proceeding in Kings County Criminal Court, the Plaintiff ultimately moved for dismissal of all charges, but the defendants objected and argued that the matter proceed to trial.

48. That the prosecutions were commenced with malice and without probable cause to believe that it could truly succeed.

49. That Plaintiff was compelled to surrender and appear before the criminal courts on

approximately six separate occasions over the course of the ensuing year;

50. That the prosecutions did not, in fact, succeed and said prosecutions ended in dismissal of all charges for plaintiff.

51. That on or about April 10, 2014, the Hon. Judge Laura Johnson presiding at Kings County Criminal Court did in fact order full dismissal on the merits.

52. As a consequence, the primary purpose of the arrest was other than that of bringing Plaintiff to justice and that by such frivolous prosecutions, injury was the proximate result to the Plaintiffs and their reputation suffered as a consequence.

53. Such actions were reckless and demonstrated a callous indifference to legally protected rights of others.

54. The Defendants, jointly and severally, failed to take reasonable steps to stop the prosecution of the Plaintiff and instead maliciously and deliberately provided false and/or incomplete information to be District Attorneys Office - to induce further prosecution of the plaintiff - despite absence of probable cause.

55. That the issued misdemeanors and subsequent prosecution was vexatious in accordance with New York State Civil Rights Law.

56. That as a result of the prosecution, Plaintiff was deprived of his liberty and suffered the humiliation, anguish, indignity and frustration of an unjust criminal prosecution.

57. That damages should accordingly issue in the minimal sum of \$5,000,000.00 and punitive damages should be awarded in addition.

AS AND FOR A FIFTH CAUSE OF ACTION
(Infliction of emotional distress)

58. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered "1" through "57" inclusive, with the same force and effect as if more

fully set forth at length herein and states when Defendant arrested and handcuffed plaintiff - they led him out of the premises - in front of business colleagues and other resident citizens.

59. That Plaintiff suffered embarrassment, ridicule, emotional distress and damage to reputation - arising out of said threats, harassment, intimidation, unjust arrest, illegal confinement, and malicious prosecution and such was the direct and proximate cause of Defendants actions.

60. That the actions of the Defendants was an egregious and retaliatory act - deliberately staged to willfully strike harm to the Plaintiff.

61. That the distress suffered lasted right to the point when plaintiff was finally advised that his malicious prosecution had terminated in his favor.

62. That as a consequence, Plaintiff has suffered both mentally and physically from all the actions and eventualities herein.

63. Plaintiff has accordingly been damaged in the minimal sum of \$5,000,000.00.

AS AND FOR A SIXTH CAUSE OF ACTION
(Monell)

64. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered "1" through "63" inclusive, with the same force and effect as if more fully set forth at length herein and states that the Defendant CITY, grossly failed to train and adequately supervise its police officers in the fundamental law of criminal investigation, search and seizure and arrest - especially where, as here, plaintiff committed no crime and had not resisted arrest notwithstanding.

65. That any arrest should clearly be based on probable cause and there was no probable cause to arrest the plaintiff herein.

66. That Defendant CITY was negligent by failing to implement a policy within its police department to instruct and supervise so that their patrol officers do not arrest where probable cause is clearly lacking or where the arresting officer acts out of animus or indifference to the rights of the plaintiff herein.

67. That CITY was negligent in that prior to and that the time of the acts complained of, due to the questionable practices undertaken by RICHARDS, the CITY knew or should have known of the bad disposition of such Officer or had knowledge of facts that would put a reasonably prudent employer on inquiry concerning the bad disposition and the realities that such Police Officers were not suitable to act in law enforcement capacities before the public and otherwise be employed by the CITY OF NEW YORK , and that due to their lack of training, said Police Officers should have had adequate supervision so not to arrest innocent individuals.

68. Accordingly, Defendant is negligent due to its failure to implement a policy within its Police Department or to actively enforce the law if probable cause is lacking.

69. The foregoing acts, omissions, and systematic failures are customs and policies of the CITY - which caused the individual police officers to improperly arrest, illegally search and seize Plaintiffs person and personalties and maliciously prosecute - under mistaken belief that they would suffer no disciplinary actions for their failures to act prudently and in accordance with the rule of law.

70. Defendants CITY acting in concert with their local precincts - have encouraged and permitted such unconstitutional policies and customs to be carried out and have thereby demonstrated a deliberate indifference to those constitutional values.

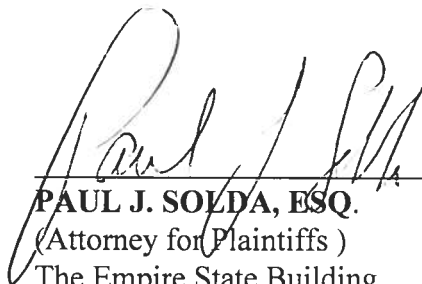
71. Plaintiff has accordingly been damaged in the minimal sum of \$5,000,000.00.

WHEREFORE, Plaintiffs demand judgment against the Defendants' as follows:

1. Per First Cause of Action; damages in the minimal sum of \$5,000,000.00 for each respective Plaintiff and an award of reasonable attorneys fees.
2. Per Second Cause of Action, damages in the minimal sum of \$5,000,000.00 for each respective Plaintiff.
3. Per Third Cause of Action, damages in the minimum of \$5,000,000.00 for each respective Plaintiff.
4. Per Fourth Cause of Action, damages in the minimum of \$5,000,000.00 for each respective Plaintiff.
5. Per Fifth Cause of Action, damages in the minimum of \$5,000,000.00 for each respective Plaintiff.
6. Per Sixth Cause of Action, damages in the minimum of \$5,000,000.00 for each respective Plaintiff.

JURY TRIAL DEMANDED

Dated: New York, New York
April 7, 2015


PAUL J. SOLDA, ESQ.
(Attorney for Plaintiffs)
The Empire State Building
350 Fifth Avenue, Suite 4400
New York, New York 10118
212.967.3393

To:
City of New York Corporation Counsel
Zachary Carter, Esq.,
100 Church Street
New York, N.Y. 10007

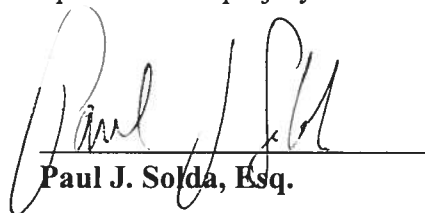
VERIFICATION

Paul J. Solda, being duly admitted to practice in the Courts of the State of New York say that I am the attorney of record to the within party and that I am fully familiar with the facts and circumstances hereto. I have read the foregoing complaint and have fully discussed with the responding party and accordingly know the contents to be true to my knowledge, except those matters stated upon information and belief and those relied upon by documents and memoranda within this file.

I make this Affirmation (verification) instead of the plaintiff because the plaintiff resides in a different county from where your deponent maintains its practice of law.

I affirm the foregoing to be true subject to the penalties for perjury.

Dated: April 7, 2015



Paul J. Solda, Esq.